



CHAPTER 50

An Act to make further provision as to the transfer to the reserve or determination of service of persons serving in the army for a term of twenty-two years.
[31st July, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the case of persons who enlist on or after the first day of October, nineteen hundred and fifty-seven, for a term of twenty-two years of army service, the Army Council shall have power by regulations under Part I of the Army Act, 1955, to confer—

(a) any right to be transferred to the reserve at a time or times before the end of the period of twelve years beginning with the date of attestation, and

(b) any right to determine army service at a time or times before the end of the said period,

being rights exercisable in such circumstances and subject to such conditions as may be prescribed; and the power of varying regulations made in pursuance of this subsection shall be subject to the restrictions specified in subsection (6) of this section.

(2) Every person who enlists on or after the said date for such a term of twenty-two years may, on making application in the prescribed manner, and with the consent of the competent military authority, be transferred to the reserve at any time before he has completed twelve years service.

(3) Every person who enlists on or after the said date for such a term of twenty-two years shall, subject to the provisions of

this section, have the right to determine his service at the end of the said period of twelve years beginning with the date of his attestation, or of any succeeding period of three years, by a notice given in such form and at such time, and revocable in such circumstances, as may be prescribed.

(4) Where a person is transferred to the reserve under regulations made in pursuance of subsection (1) of this section, or under subsection (2) of this section, he shall serve in the reserve for such period as may be prescribed so, however, that that period shall not extend beyond twelve years from the date of his attestation; and regulations under Part I of the Army Act, 1955, may provide for the conditions under which a person so transferred to the reserve may re-enter upon army service and prescribe the conditions subject to which a person so re-entering army service will serve.

(5) Without prejudice to the power under subsection (1) of this section of prescribing the circumstances in which and the conditions subject to which rights conferred under that subsection are exercisable, regulations under the said Part I may also—

(a) require that, in consideration of a person being permitted to undergo any course of instruction or to transfer to a corps different from the one in which he was previously serving, or in consideration of the conferring on him of any other benefit or advantage, he shall give an undertaking not to determine his army service before the expiration of a specified period, and

(b) provide that a person who has given such an undertaking shall not give notice to exercise a right conferred by regulations made in pursuance of subsection (1) of this section, or a right conferred by subsection (3) of this section, which would result in his transfer to the reserve or the determination of his service before the end of that period,

and regulations may provide for the giving of such undertakings by persons who enlisted before the regulations were made as well as by persons who enlisted after that time.

(6) Subject to the provisions of the last foregoing subsection, any regulations under the said Part I which vary or revoke regulations made in pursuance of subsection (1) of this section, or which vary any period prescribed under subsection (4) of this section as a period for which a person shall serve in the reserve, shall not affect persons who enlisted for a term of twenty-two years of army service before the time when the varying or revoking regulations are made.

(7) Section five of the Army Act, 1955, shall not apply to persons enlisting on or after the said first day of October, nineteen

hundred and fifty-seven, but any reference in Part I of that Act to the rights conferred by subsection (1) of that section shall include a reference to rights conferred by regulations made in pursuance of subsection (1) of this section, or by subsection (3) of this section, and in subsection (5) of section eight of that Act (which excludes the said section five in the case of a soldier who has continued in service under the said section eight) the reference to the said section five shall include a reference to subsection (3) of this section.

(8) For the purposes of this section—

- (a) a person who enlisted on any date for a term other than a term of twenty-two years and who is treated under subsection (1) of section six of the Army Act, 1955, as if his enlistment had been for a term of twenty-two years shall be regarded as a person who enlisted on that date for such a term, and
- (b) a person who enlisted before he attained the age of eighteen years and who is treated under subsection (2) of the said section six as if on the date on which he attained that age he had enlisted for a term of twenty-two years shall be regarded as a person who enlisted on that date for such a term.

(9) This section shall have effect as if contained in Part I of the Army Act, 1955, but subsection (2) of section seventeen of that Act (which treats a soldier part of whose service has been forfeited as having enlisted on a date later than that on which he in fact enlisted) shall not have effect in the case of a person so treated as having enlisted on or after the first day of October, nineteen hundred and fifty-seven, so as to apply the provisions of this section if that person would otherwise have been regarded as having enlisted before that date.

2. This Act may be cited as the Army (Conditions of Enlistment) Act, 1957.

CH. 50

Army (Conditions of Enlistment)
Act, 1957

5 & 6 ELIZ. 2

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE
Price 4d. net

PRINTED IN GREAT BRITAIN

(38910)

Road Transport Lighting Act, 1957

5 & 6 ELIZ. 2 CH. 51

ARRANGEMENT OF SECTIONS

Section

1. Lights and reflectors to be carried by vehicles at night.
2. Restriction on the nature of lamps to be carried.
3. Restriction on movement of lamps.
4. Multi-purpose lamps and combined lamps and reflectors.
5. Regulations as to position and use of lamps and reflectors.
6. Bicycles, tricycles and invalid carriages.
7. Horse-drawn agricultural vehicles.
8. Vehicles carrying overhanging or projecting loads.
9. Vehicles towing and being towed.
10. Powers of exemption and variation of requirements.
11. Power to impose additional requirements for vehicles over prescribed length and trailers.
12. Offences.
13. Regulations.
14. Fines.
15. Application to Crown.
16. Saving for railway locomotives, etc. and tramcars.
17. Interpretation.
18. Application to Scotland.
19. Temporary modifications in relation to certain vehicles.
20. Consequential amendment of Road Traffic Act, 1956.
21. Repeals, transitional provisions and savings.
22. Short title, extent and commencement.

SCHEDULE—Enactments repealed.